

Ram Charan alias Ram Lakhan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 December 2019 · WRIT - C No. - 39425 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A writ challenging an electricity demand as an incorrect bill is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may approach the designated authority within 15 days; that authority is to decide by a speaking order after hearing, within 15 days thereafter. Coercive action is stayed for 40 days.

FACTUAL SUMMARY

The petitioner, Ram Charan alias Ram Lakhan, filed a writ against a demand notice dated 23 February 2019 issued by respondent no. 3 seeking recovery of Rs. 5,62,293, and also prayed for a mandamus to decide his representation of 8 November 2019. He disputed the correctness of the electricity bill. The Division Bench heard counsel for the petitioner and for the Electricity Department and perused the record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correctness — statutory remedy

HOLDING

Where the consumer disputes the correctness of an electricity bill, a writ against the demand will not be entertained because Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a statutory remedy. The consumer may apply to the appropriate authority within 15 days of the order; that authority is to decide the application in accordance with law by a speaking order after hearing, within 15 days thereafter. Coercive action is stayed for 40 days. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS. 5,62,293 AND THE REPRESENTATION DATED 08.11.2019

Left to the Clause 6.5 authority to decide on merits by a speaking order after hearing. ¶ 1